

Court No. - 21

Case :- WRIT - C No. - 40487 of 2022

Petitioner :- Smt. Nadra Khatoon

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Zafeer Ahmad

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

Sri Pranjal Mehrota, learned counsel for the Electricity Department shall place on record the provisional and the final assessment orders by means of an affidavit.

List this case as fresh on 30.1.2023.

Till the next date of listing, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

Order Date :- 13.1.2023

Faridul

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Petitioner :- Smt. Nadra Khatoon

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Zafeer Ahmad

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed praying for quashing of the order dated 31.8.2022 rejecting the representation of the petitioner filed against the recovery notice issued by the respondent-Electricity Department for recovery of amount assessed against the petitioner under the provisions of the Electricity Supply Code, 2005. The case of the petitioner is that there was no final assessment order in existence and consequently the recovery proceedings are per se illegal.

Sri Pranjal Mehrotra, learned counsel appearing on behalf of the respondent-Electricity Department on instructions states that the impugned recovery has been withdrawn and that the respondent department will pass fresh order after following the procedure prescribed under the Electricity Supply Code, 2005. A copy of the communication sent in this behalf by Executive Engineer to Additional District Magistrate (Finance and Revenue), dated 20.1.2023 has been placed on record for our perusal.

Having regard to the above fact, we dispose of the instant petition in terms of the statement made by learned counsel for the respondent-Electricity Department. The respondent shall now proceed in the matter strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 30.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)